

25SMCV06441 25SMCV06441

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TENTATIVE RULING

Accordingly, the Court finds that Defendant Maria has sufficiently demonstrated a settlement made in good faith. Accordingly, Defendant Maria's Application for Good Faith Settlement Determination is GRANTED.

Any other joint tortfeasors or co-obligors are barred from asserting any further claims against Defendant Maria based on comparative negligence or comparative fault.

Defendant Maria Garcia Diaz to give notice.

REASONING

Code of Civil Procedure section 877.6 enables a settling defendant to free itself not only from any further claims of the plaintiff but also from any subsequent liability to any non-settling defendant for equitable comparative contribution, or partial or comparative indemnity. A settling defendant obtains this immunity by settling in "good faith." Code of Civil Procedure section 877.6, subdivision (b), provides that the court may determine the good faith of a settlement on the basis of affidavits and counter affidavits or may, in its discretion, receive other evidence at the hearing. Section 877.6 grants the trial court broad discretion in determining whether a settlement is in good faith for purposes of that statute, and "its decision may be reversed only upon a showing of abuse of discretion." (TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 165.)

To determine whether a settlement was in "good faith" the court should inquire as to whether the amount of the settlement is "within the reasonable range" of the settling defendant's proportional share of comparative liability for the plaintiff's injuries. (Abbott Ford, Inc. v. Superior Court (1987) 43 Cal.3d 858, 872.) Ultimately, the "settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (Tech-Bilt v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499 (Tech-Bilt).) In determining the good faith of a settlement, the court should consider a number of factors, including:

- (1) A rough approximation of the total recovery and the settlor's proportionate liability;
- (2) The actual settlement amount;
- (3) The allocation of settlement proceeds among plaintiffs;

- (4) The recognition that a settlor should pay less in settlement than he or she would if liability is established after trial;
 - (5) The financial conditions and insurance policy limits of the settlor; and
 - (6) The existence of facts showing collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.
- (Ibid.) Furthermore, the evaluation must “be made on the basis of information available at the time of settlement.” (Ibid.)

The party contesting the settlement bears the burden of proving that the settlement is in bad faith. (Code Civ. Proc., § 877.6, subd. (d).) Notably, when the good faith nature of a settlement is uncontested, the Court need not consider and weigh the Tech-Bilt factors. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.) “[W]hen no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (Ibid.)

Defendant Maria Garcia Diaz (“Defendant Maria”) moves the court for a determination of good faith settlement with Plaintiff George Doctorian (“Plaintiff”). Defendant Maria and Plaintiff reached a settlement agreement on October 22, 2025, for Defendant Maria’s \$15,000.00 policy limits in exchange for the release of Defendant Maria for all claims relating to the automobile accident that occurred on July 17, 2024. (Mot., pp. 4-5.)

Defendant Hector Antonio Garcia Diaz (“Defendant Hector”) opposes the motion, arguing Defendant Maria has failed to carry her burden of presenting sufficient information to evaluate the settlement against the Tech-Bilt factors.

Applying the Tech-Bilt factors, the Court finds the settlement between Plaintiff and Defendant Maria was made in good faith. The Court notes there is only one plaintiff in this matter, therefore the third factor is inapplicable.

a. Rough Approximation of Plaintiff’s Total Recovery and Settlor’s Proportionate Liability

Defendant Maria argues the \$15,000 settlement equals Plaintiff’s total recovery and leaves little for Plaintiff to claim against Defendant Hector. (Mot., p. 9.) Defendant Maria argues the settlement is within the reasonable range of the Defendant Maria’s proportional share of comparative liability for Plaintiff’s injuries. (Mot., p. 9.) The Court agrees that the settlement amount is a fair estimation of Defendant Maria’s apparent liability to Plaintiff for rear ending Plaintiff’s vehicle.

b. Amount Paid in Settlement

The settlement amount of \$15,000, to be paid to Plaintiff in exchange for a full release of claims against Defendant Maria arising from the incident, supports a finding of good faith.

c. Settlor’s Financial Condition and Insurance Policy Limits

The party contesting the settlement bears the burden of proving that the settlement is in bad faith. (Code Civ. Proc., § 877.6, subd. (d).)

Defendant Hector argues Defendant Maria fails to provide information sufficient to permit the required Tech-Bilt analysis, and that the settlement appears disproportionate to Defendant Maria’s share of liability. (Opp., p. 5.) Defendant Hector argues he

will be prejudiced if the motion is granted because he does not have the benefit of a settlement extinguishing his own exposure, and remains fully exposed to any verdict in excess of his insurance coverage. (Opp., p. 8.)

Defendant Maria has sufficiently supported the settlement with competent evidence. As to insurance limits, Defendant Maria has submitted the declarations page of her automobile insurance policy, which sets bodily injury limits of \$15,000 per person and \$30,000 per occurrence. (Asare Decl., ¶ 5, Ex. A.) Additionally, Defendant Maria submitted a Declaration of Assets, stating she had no umbrella, excess, or other liability coverage beyond the National General policy, and that her insurance would not cover all of Plaintiff's claimed damages. (Asare Decl., ¶ 7, Ex. C.)

In contrast, Defendant Hector has offered no evidence in support of his argument that the settlement was made in bad faith.

d. Collusion, Fraud, or Tortious Conduct

The settlement agreement was reached by Plaintiff and Defendant Maria following an arm's length negotiation through insurance claims representatives. (Asare Decl., ¶ 13.) Upon this record, the Court finds no collusion, fraud, or tortious conduct present.

Accordingly, the Court finds that Defendant Maria has sufficiently demonstrated a settlement made in good faith. Accordingly, Defendant Maria's Application for Good Faith Settlement Determination is GRANTED. Any other joint tortfeasors or co-obligors are barred from asserting any further claims against Defendant Maria based on comparative negligence or comparative fault.